

3. 10:00 AM CASE NUMBER: MSC19-02043
CASE NAME: GARAVENTA VS AZARI
***HEARING ON MOTION FOR DISCOVERY ORDER COMPELLING COMPLIANCE WITH SUBPOENAS FOR PROD OF DOCS**
FILED BY: GARAVENTA, SILVIO
TENTATIVE RULING:

Pursuant to the stipulation of the parties, this matter was continued to July 27, 2026, 9:00 am, in Department 34, by the Court's Order entered June 10, 2026.

Law & Motion

4. 9:00 AM CASE NUMBER: C22-02535
CASE NAME: JNBUD HADU VS. CESAR MATTOS
***HEARING ON MOTION IN RE: FOR COMPLETE CONSOLIDATION OF CASE NO. P23-01784 WITH CASE NO. C22-02535**
FILED BY: HADU, JNBUD DAWOD
TENTATIVE RULING:

Before the Court is a motion by Plaintiff to fully consolidate a related probate case with this civil action. For the reasons set forth, the motion is **DENIED**.

Background

Plaintiff Jnbud Dawod Hadu ("Hadu" or "Plaintiff") alleges she is the successor in interest of her sister Sabiha Campbell ("Campbell" or "Decedent") who died on July 27, 2022. (Third Amended Complaint ("3AC") ¶ 2.) Plaintiff alleges she is "the intestate heir [of Decedent] whose interest is affected" by the action, "but for" the defendants' allegedly unlawful conduct. (3AC ¶ 3 and Exh. A [Kozicki Decl. ¶¶ 3-7 [on information and belief asserting Decedent died "leaving no will" and Decedent's estate would be awarded to Hadu].)

The general factual background alleged in the 3AC is that Campbell moved to California in approximately 1976 and married John Campbell approximately two years later. (3AC ¶ 4.) John Campbell died in February 2008. (3AC ¶ 5.) Decedent created the Sabiha Campbell 2008 Revocable Trust in May 2008 (the "Trust") designating defendant Cesar Mattos and Christine Mulder, formerly a defendant and now dismissed, as sole beneficiaries of the residue of Campbell's estate. (3AC ¶ 6 and Exh. B; 9/8/2025 Req. for Dism.) Plaintiff alleges In December 2009, Campbell executed a "purported" First Amendment to Trust removing Mulder as a beneficiary. (3AC ¶ 6 and Exh. C.) Defendant Mattos was a handyman employed by Campbell's husband prior to his death. (3AC ¶ 39.)

On or about August 30, 2022, Hadu was notified of Campbell's death when she received a Notification by Trustee of that date, a copy of which is attached to the 3AC as Exhibit D. (3AC ¶¶ 9, 36 and Exh. D.) She filed her initial complaint in this action on November 29, 2022. In her operative 3AC and after dismissal of Mulder, she alleges various violations of the Elder Abuse and Dependent Adult Civil

Protection Act (Welf. & Inst. Code § 15600 *et seq.*) ("Elder Abuse Act") by defendant Mattos. (3AC ¶ 39.)

On October 5, 2023, defendant Mattos filed a petition for probate of lost will and for letters testamentary and to be appointed as executor of Campbell's estate, initiating the case *Estate of Sabiha Campbell*, Case No. P23-01784 ("Probate Case") pending before the Judge Hinton in the probate department of this Court. On February 20, 2024, Amaal Kozicki, Hadu's daughter, filed a contest to the petition, objecting to the appointment of Mattos as executor based on the pending elder abuse claims, and a petition for letters of administration, alleging Campbell died intestate.

Plaintiff Hadu moves for complete consolidation of the Probate Case with this civil action. Mattos opposes the motion. The motion represents that no discovery has been conducted in the probate case to date. It is not clear to the Court whether any discovery has been conducted in this case, except for discovery by the dismissed defendant Mulder, based on a motion to compel discovery responses and a motion to deem matters admitted filed by Mulder in July 2024.

Legal Standards Applicable to Motion for Consolidation

Code of Civil Procedure section 1048 provides, "When actions involving a common question or law or fact are pending before the court, it may order a joint hearing or trial of any or all of the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay." (Code Civ. Proc. § 1048(a).) The decision whether to consolidate actions is left to the sound discretion of the trial court based on its assessment of various factors, including whether there are common issues of fact or law, and even if there are, whether other factors, such as potential prejudice to one or more parties, delay, confusion or other considerations do not warrant consolidation. (*Todd- Stenberg v. Dalkon Shield Claimants Trust* (1996) 48 Cal.App.4th 976, 978-979 ["Code of Civil Procedure section 1048 grants discretion to the trial courts to consolidate actions involving common questions of law or fact. The trial court's decision will not be disturbed on appeal absent a clear showing of abuse of discretion."].)

The Court in *Askew v. Askew* (1994) 22 Cal.App.4th 942 explained: "A motion to consolidate under section 1048 of the Code of Civil Procedure is predicated on the assumption that two or more actions already 'involv[e] a common question of law or fact.' The motion requests the court to exercise its *discretion* to consolidate the actions (the court '*may* order a joint hearing or trial of any or all the matters in issue in the actions,' italics added). Therefore it is possible that actions may be thoroughly 'related' in the sense of having common questions of law or fact, and still not be 'consolidated,' if the trial court, in the sound exercise of its discretion, chooses not to do so." (*Id.* at 964 [italics in original].)

Analysis

Mattos raises two points in opposition to consolidation. First, Mattos points to provisions of the Probate Code that the superior court sitting in probate has exclusive jurisdiction over probate petitions, citing Probate Code sections 800, 17000, and 17200. Second, Mattos disputes that there are common legal or factual issues that warrant complete consolidation of the cases. The Court agrees with Mattos.

Probate Code section 800 states, "The court in proceedings under this code is a court of general jurisdiction and the court, or a judge of the court, has the same power and authority with respect to

the proceedings as otherwise provided by law for a superior court, or a judge of the superior court, including, but not limited to, the matters authorized by Section 128 of the Code of Civil Procedure." Probate Code section 17000 states that "The superior court having jurisdiction over the trust pursuant to this part has exclusive jurisdiction of proceedings concerning the internal affairs of trusts." (Prob. Code § 17000(a).) The Probate Court similarly has jurisdiction over proceedings concerning the internal affairs of a trust under Probate Code section 17200.

While there may be certain factual issues in the Probate Case that may overlap with issues in this case, they arise in a different legal and statutory context. There are other statutory and legal issues within the scope of the Probate Case that the probate court is in a far superior position to address. It is not clear to the Court that a petition to probate a "lost will," to determine the executor, and to issue letters testamentary would be properly before the civil division of the Court, or that the legal and factual issues to take those actions and make those determinations are necessarily common to the elder abuse claims in this case. (See also Local Civ. R. 7.1 ["Matters governed by the Probate Code . . . shall be set for hearing in the department(s) designated by the Presiding Judge. These departments will be known collectively as the Probate Division. All Probate Division cases subject to this rule will be assigned to one judge for all purposes unless otherwise determined by the Presiding Judge for good cause."].)

The Court agrees with Plaintiff that Plaintiff's standing in this civil action may be determined incidentally by the proceedings before the probate court. The Court also agrees that avoiding a duplication of discovery efforts or inconsistent rulings are proper goals, but there are alternative means to achieve those goals other than full consolidation of the Probate Case with this civil action. Though defendant's attorney declares they met and conferred regarding consolidation as directed by the Court at the February 13, 2026 case management conference, defendant's attorney declares they were unable to reach any resolution.

Plaintiff's motion only requests full consolidation of the two actions. Neither party has suggested as an alternative that the Court partially consolidate the cases for purposes of discovery only, so that discovery taken in one action can be used in the other. Alternatively, the parties could so stipulate. The relief sought in the motion is limited to full consolidation, however, and the Court in its discretion finds full consolidation is not appropriate under the circumstances. If either party believes that a stay of this action is necessary and appropriate in light of the pending probate action, the parties are encouraged to confer on a stipulation or else either party can bring such a motion.

5. 9:00 AM CASE NUMBER: C23-01654
CASE NAME: AMERICAN EXPRESS NATIONAL BANK VS. CHRISTINA HARRIS
***HEARING ON MOTION IN RE: VACATE THE CONDITIONAL DISMISSAL AND FOR ENTRY OF JUDGMENT CCP 664.6**
FILED BY: AMERICAN EXPRESS NATIONAL BANK
TENTATIVE RULING:

Plaintiff American Express National Bank ("Plaintiff") filed a Motion to Vacate the Conditional Dismissal and for Entry of Judgment on February 3, 2026 ("Motion to Enforce Settlement"). The Motion to Enforce Settlement was set for hearing on June 22, 2026. The motion is unopposed.